

Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement ("**Agreement**") is entered into by and between:

1. **Mehta Heino Industries Oy**, a company incorporated in Finland with its principal office at Otakaari 5 A (AGrid), 02150 Espoo, Finland, business identity code 2720792-5 (Y-tunnus) ("**Company 1**"); and
2. **Kim Fallström**, (Finnish identity code 031065-179J) Address: Neilikkatie 5 A 15, 01300 Vantaa ("**Company 2**").

Company 1 and the Company 2 are individually referred to as a "**Party**" or jointly as "**Parties**".

1. Purpose of the Agreement

The Parties are engaging in discussions regarding a possible co-operation for the purpose of a technical and/or commercial relationship pertaining additive manufacturing / 3D Printing & other company's internal projects, and its customer's internal project in possible co-operation thereafter ("**Purpose**").

The Parties shall keep in confidence all material and information in whatever form received from the other Party or its Affiliates, whether marked as confidential or not ("**Confidential Information**") and the Parties are willing to restrict the use and disclosure of the Confidential Information.

For the purposes of this Agreement "**Affiliate**" shall mean a Party and any current or future entity which is directly or indirectly (i) controlled by a Party, (ii) controlling a Party or (iii) under common control with a Party. Control shall exist through having fifty percent (50%) or more of votes, ability to direct affairs and/or control the composition of board of directors or equivalent body.

2. Confidentiality undertaking

The Parties agree that:

- a) Confidential Information and all rights to Confidential Information shall at all times remain the property of the disclosing Party and/or its Affiliates. The Parties shall treat the Confidential Information with the same degree of care as the Parties use to maintain and safeguard their own confidential information, but always at least with a reasonable degree of care;
- b) Confidential Information provided by a Party and/or its Affiliates to the other Party shall be used by the other Party solely for the Purpose and not in way which is or may be detrimental to the interest of the disclosing Party and/or its Affiliates;
- c) They will not distribute, disclose or disseminate Confidential Information to any third party without the prior written consent of the other Party, except for their directors, officers and employees who have a need to know such Confidential Information and who are involved in the consideration or performance of the Purpose and who have been informed of and have agreed to abide by the terms of this Agreement; and
- d) They will not disclose any Confidential Information to any of their Affiliates without the prior written consent of the other Party, except those of their Affiliates directors, officers and employees who have a need to know such Confidential Information and who are involved in the consideration or performance of Purpose and who have been informed of and have agreed to abide by the terms of this Agreement.

The abovementioned confidentiality obligation does not apply to information that:

- a) is in or enters the public domain, through no breach of this Agreement by either Party; or
- b) was known to the receiving Party, without restriction, prior to the disclosure by the disclosing Party as proven by the records of the receiving Party;
- c) is or has been rightfully disclosed to the receiving Party by a third party who has no obligation of confidentiality thereto;
- d) is developed by a Party independently without breach of this Agreement; or
- e) is required to be disclosed in accordance with a valid and legally binding judicial or governmental order or legal requirement, provided that the other Party is given reasonable notice prior to such disclosure and the intended scope and content of such disclosure as a result of such order or legal requirement.

The burden of proof in respect of the non-confidential nature of information lies with the Party claiming non-confidentiality.

3. General obligations of the Parties

The Parties acknowledge that the Confidential Information is disclosed on as "as is" and "as available" basis. In no event shall the Parties be liable for the accuracy or completeness of any Confidential Information. The Parties give no warranties, whether express or implied including any implied warranties of merchantability, non-infringement, quality or fitness for a particular purpose with respect to the Confidential Information.

Save for the Purpose of this Agreement, Confidential Information shall not be mechanically copied or otherwise reproduced by the Parties without the express written permission of the other Party.

No license or right is granted to the other Party under any patent, trademark, copyright, or other proprietary or intellectual property right pertaining to Confidential Information by the disclosing Party and/or its Affiliates.

Upon discovery by the Parties of any unauthorised disclosure of Confidential Information in their possession the Parties shall use their best endeavours to mitigate the damages and to prevent any further disclosure or unauthorized use thereof.

The Parties agree that they will not disclose or make any publicity or press release or any reference to this Agreement or the discussions between the Parties without the prior written consent of the other Party.

At a Party's request, all Confidential Information which is in the possession of the other Party shall be immediately returned to the requesting Party by courier service or destroyed at the choice of the requesting Party. If requested, the other Party shall confirm in writing that no originals and/or copies of Confidential Information have been kept.

Neither this Agreement nor the disclosure or receipt of Confidential Information shall constitute or imply a commitment by either Party with respect to present or future co-operative business relationship between the Parties or any other subject matter not expressly set forth herein.

Any amendment to this Agreement must be in writing and signed by an authorised representative of each Party. No failure or delay in exercising any right under this Agreement shall operate as a waiver thereof.

4. Term and termination

Either Party may terminate this Agreement for convenience by providing thirty (30) days prior written notice of the termination to the other Party. The rights and obligations of this Agreement shall survive the termination or cancellation of this Agreement and shall remain in force for a period of five years (5) years from the date this Agreement is duly signed by both Parties, or if the Confidential Information is disclosed after the date of signing, for a period of five years (5) years from the disclosure.

5. Applicable law and dispute resolution

This Agreement shall be governed by the substantive laws of Finland excluding its choice of law provisions.

Any dispute, controversy or claim arising out of or relating to this contract, or the breach, termination or validity thereof, shall be finally settled in arbitration by one (1) arbitrator in accordance with the Arbitration Rules of the Finnish Central Chamber of Commerce. The place of arbitration shall be Espoo, Finland and the language of the arbitration proceedings shall be Finnish or if the other Party is not a Finnish company the language shall be English. Any award, order or judgement by a Court or arbitrator shall be deemed final and binding on both Parties and may be entered or enforced by any court of competent jurisdiction.

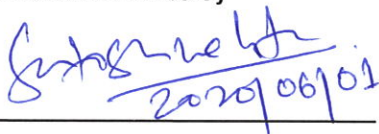
In addition to what is stated above, the breached Party shall be entitled to seek interim injunctive relief.

The Parties agree and acknowledge that any arbitral proceedings, including the possibility of the same and any documents, statements and other information presented and disclosed before or during any arbitration, the award, order or judgement shall be deemed Confidential Information and subject to the terms and conditions of this Agreement.

6. Signatures

This Agreement is executed in two (2) originals, one (1) for each Party.

Mehta Heino Industries Oy



2020/06/01

Santosh Mehta, CEO

Kim Fallström



Kim Fallström

Place: Espoo

Date: 2020/06/01

Place: Espoo

Date: 1.6.2020



TYÖSOPIMUS EMPLOYMENT CONTRACT

1 **Työsopimuksen osapuolet / Contract parties**

Työnantaja / Employer Mehta Heino Industries Oy	Kotipaikka ja Y-tunnus / Domicile and Business Identity Code Espoo, 2720792-5 Osoite / Address Otakaari 5 A (AGrid), 02150 Espoo, Finland
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Työntekijä / Employee Kim Fallström	Henkilötunnus / Identity number 031065-179J
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(Job title: Embedded Software Engineer, Electronics Department at Mehta Heino Industries Oy)	Osoite / Address: Neilikkatie 5 A 15, 01300 Vantaa, Finland
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2 **Työsuhteen kesto / Term of employment**

Työsuhde alkaa 1. kesäkuuta, 2020 ja on voimassa /
The employment begins on June 1, 2020 and is in force

~~toistaiseksi / until further notice~~

+ määräajan, **30.9.2020** saakka / for a fixed period until **30.09.2020**.

Kim Fallström
2020/06/02

Määräaikaisuuden syy / Reason for the fixed term:
Business Finland Tempo -projekti (kesto 4 kuukautta) /
Business Finland Tempo Project (Duration 4 months)

Työnantaja on palkannut työntekijän kokopäivätoimeen. Ilman Työnantajan nimenomaista suostumusta ei Työntekijä saa ottaa hoitaakseen muuta palkallista tehtävää tai harjoittaa muuta palkallista toimintaa omaan tai toisen lukuun. / The employee has been employed on a full-time basis. The employee is obligated not to have other paid occupation or to practise other paid activities without the employer's prior written consent thereto.

3 **Koeaika / Trial period**

Työsuhteen alussa on 1 kuukauden pituinen koeaika, jona aikana työsuhde voidaan purkaa välittömästi vaikutuksin. / There is a 1 month's trial period at the beginning of the employment. During this trial period the employment relationship can be revoked with immediate effect.

4 **Pääasialliset työtehtävät**

Pääasialliset työtehtävät työsuhteen alkaessa / Main duties at the beginning of the employment

- **Työnteko Tempo-projektin ja elektroniikkasuunnittelun parissa / Working in the Tempo-project and electronics design**

Tarvittaessa työntekijä on velvollinen suorittamaan myös muita työnantajan kulloinkin osoittamia tehtäviä. / When needed, the employee is under an obligation to perform also other duties assigned by the employer from time to time.

- 5 Työn pääasiallinen suorittamispaikka / Main duties and principal place of station
- Työn pääasiallinen suorittamispaikka työsuhteen alkaessa / Main place of station at the beginning of the employment.
- + Mehta Heinon toimisto Espoossa / Mehta Heino's main office in Espoo

Työntekijä on kuitenkin velvollinen oma-aloitteisesti tehtäviensä edellyttämin tavoin matkustamaan ja suorittamaan tehtävänsä siellä, missä se olosuhteisiin nähden on tarkoituksenmukaisinta. / The employee is, however, from time to time obliged to travel and accomplish his/her duties where it is under the circumstances is the most appropriate.

- 6 Palkka ja palkanmaksukausi / Salary and period for remuneration
- Bruttopalkka työsuhteen alkaessa 2400 euroina / Gross salary 2400 EUR at the beginning of the employment.

Palkka maksetaan työnantajan kulloinkin noudattaman palkanmaksukäytännön mukaisesti. Työsuhteen päättyessä lopputili maksetaan työsuhteen päättymistä seuraavana normaalina palkanmaksupäivänä. /

Salary will be paid in accordance with the employer's salary payment policy valid from time to time. At the end of the employment, the final pay-off will be paid on the normal salary payment date following the end of the employment.

Palkanmaksukausi / Period for remuneration

+ _____ viikkoa / weeks

+ yksi kuukausi / one month

Palkanmaksu seuraavan kuukauden 1. viikko / Salary is paid 1st week of following month.

- 7 Työaika ja ylityöt / Working hours and overtime work
- Säännöllinen vuorokautinen ja viikottainen työaika / Regular daily and weekly working hours

+ 7,5 / 37,5 tuntia / hours

+ 8 / 40 tuntia / hours

+ _____

Ylityön tekeminen edellyttää sekä työnantajan määräystä että työntekijän suostumusta. Sopimuksen mukaisesti tehdyt ylityöt korvataan työaikain mukaan. / Both the employer's order and the employee's consent are required for the overtime work. Agreed overtime work shall be compensated in accordance with the provisions of the Working Hours Act.

- 8 Vuosiloma/ Annual holiday
- Vuosiloma / Annual holiday
- + määräytyy lain mukaan / in accordance with law
- + _____

- 9 Irtisanomisaika / Notice of termination
- Irtisanomisaika / Notice of termination
- + määräytyy työsopimuslain/työehtosopimuksen mukaan, ollen kuitenkin molemminpuolisesti vähintään 1 kuukausi / in accordance with the Employment Contracts Act / collective bargaining agreement, however at least 1 month for both parties.
- + on _____ kuukautta työnantajan irtisanoessa työsopimuksen ja _____ kuukautta työntekijän irtisanoutuessa / _____ months in case the

employer terminates the employment contract and _____ months in case the employee terminates the employment contract.

10 Muut ehdot / Other terms

Kaikki työntekijän työn tuloksena tai sen sivutuotteena syntyvät Immateriaalioikeudet siirtyvät automaattisesti ja ilman eri korvausta työnantajalle, sikäli kuin niiden ei jo suoraan lain nojalla katsota kuuluvan työnantajalle, ellei pakottavasta lainsäädännöstä muuta johdu. Mikäli oikeuksien siirtyminen edellyttää siirto- tai muun vastaavan asiakirjan allekirjoittamista, sitoutuu työntekijä allekirjoittamaan ko. asiakirjat. / All intellectual property rights resulting from the work carried out by the employee or as a by-product of such, shall automatically and without separate compensation transfer to the employer, insofar as they are not already on the basis of law deemed to belong to the employer, and unless mandatory legislation stipulates otherwise. In case the transfer of rights requires the signing of a transfer or other document, the employee undertakes to sign such documents.

Työntekijä sitoutuu pitämään luottamuksellisena, olemaan ilmaisematta tai paljastamatta kolmannelle osapuolelle sekä olemaan muutoin käyttämättä omaksi edukseen mitään luottamuksellista tai salassapidettävää työnantajan tai sen toimittajien, asiakkaiden tai yhteistyökumppaneiden liiketoimintaan liittyvää tietoa. / Employee undertakes to keep and hold in strict confidence and not to disclose, reveal, expose to third parties or otherwise take advantage of any information of a confidential or secret nature that is related to the business of the Employer or the business of any customer or supplier of the Employer or any other party with whom the Employer agrees to hold information of such party in confidence.

Työntekijällä ei työsuhteen päättymisen jälkeen ole oikeutta työnantajan suostumuksetta mennä Työnantajan kanssa kilpailevan yhteisön tai yrityksen palvelukseen eikä ryhtyä itse yksin tai yhdessä jonkun muun kanssa harjoittamaan työnantajan kanssa kilpailevaa toimintaa kuuden (6) kuukauden aikana työsuhteen päättymisestä lukien. Mikäli työntekijä rikkoo tätä kilpailukielloa, sitoutuu hän suorittamaan työnantajalle sopimussakkona viimeisen kuuden (6) kuukauden bruttopalkkaa vastaavan määrän. / For six (6) months after the expiry of the employment, the employee shall not directly or indirectly, without the prior consent of the employer, be engaged in, employed by, furnish any services to or have any interest in any business entity or other function which competes or may compete with the employer. If the employee during the validity of the non-competition obligation above breaches the provisions of the same, the employee agrees to pay to the employer promptly at request by means of liquidated damages an amount corresponding to the employee's monthly salary for six (6) months calculated on the basis of the employee's monthly gross salary at the time of the expiry of his/her employment.

11 Allekirjoitukset / Signatures

Paikka ja aika / Place and time

Espoo 1.6.2020

**Santosh Mehta, CEO
Mehta Heino Industries Oy**

Kim Fallström

Työnantajan allekirjoitus /
Employer's signature

Työntekijän allekirjoitus / Employee's
signature

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